

**BEFORE THE
GOVERNING BOARD OF THE
LYNWOOD UNIFIED SCHOOL DISTRICT
STATE OF CALIFORNIA**

In the Matter of the Reduction in Force of:

**CERTIFICATED EMPLOYEES OF THE LYNWOOD UNIFIED
SCHOOL DISTRICT,**

Respondents.

OAH No. 2025030857

PROPOSED DECISION

Administrative Law Judge (ALJ) Chantal M. Sampogna, Office of Administrative Hearings (OAH), State of California, heard this matter on April 28, 2025, in Lynwood, California.

Terence Gallagher and Patricia Cuarenta, Attorneys at Law, Olivarez Madruga Law Organization, LLP, appeared on behalf of complainant Lynwood Unified School District (District).

Tamra M. Smith, Attorney at Law, Equality Law, LLP, appeared on behalf of respondent Stephanie Castro.

Testimony and documents were received in evidence. The record closed and the matter was submitted for decision on April 28, 2025.

The hearing for this matter was originally scheduled for April 8, 2025. On March 25, 2025, OAH granted a continuance to April 28, 2025, a continuance of 20 days. Pursuant to Education Code sections 44949, subdivision (c), and 44955, subdivision (c), the continuance extended the deadline for submission of the proposed decision to May 27, 2025. (Undesignated statutory references are to the Education Code.)

POST HEARING BRIEFS

At the conclusion of the hearing on April 28, 2025, District and respondent Castro provided closing arguments, and District provided a rebuttal argument. The hearing concluded at approximately 3:45 p.m., with time left in the day should counsel have wanted to request more time to provide additional arguments on the record, or should counsel have wanted to request to leave the record open to submit written arguments. However, neither party made such requests and the record was closed.

On May 2, 2025, District submitted to OAH and served on respondent Castro "Lynwood Unified School District's Trial Brief Re Legal Argument Raised In Closing Argument"(District's Post Hearing Brief). Included as an attachment to District's Post Hearing Brief was its March 28, 2025, Demand for Discovery.

On May 5, 2025, respondent Castro submitted to OAH and served on District "Respondent Stephanie Castro's Motion To Strike Or, Alternatively, Opposition To Complainant's Trial Brief; Declaration of Tamra M. Smith In Support Thereof (Respondent Castro's Post Hearing Brief).

In its Post Hearing Brief District alleges respondent Castro raised previously undisclosed legal challenges to District's Statement of Reduction in Force (RIF) in her closing argument at hearing. Specifically, District asserts that only at hearing did

respondent Castro claim District could not eliminate the .2 FTE portion of respondent Castro's 1 FTE for which, during the 2024-2025 school year, respondent Castro had been assigned to a dual enrollment elective course; and only at hearing did respondent Castro identify two OAH decisions which allegedly support her argument. District asserts these challenges were untimely and failed to provide District proper notice of any objections or criticisms of the RIF or related documents as required by its discovery request. Finally, District claims respondent Castro's untimely disclosure of this argument and referenced OAH decisions forced District to submit a post hearing brief.

Although District addressed respondent Castro's .2 FTE argument in its oral rebuttal argument on April 28, 2025, District more thoroughly addressed this argument and the referenced OAH decisions in its Post Hearing Brief. The remainder of District's Post Hearing Brief more generally asserts legal argument in support of its RIF and refuting respondent Castro's other legal arguments made at hearing. District did not, in its Post Hearing Brief or otherwise, request the record be reopened for consideration of District's Post Hearing Brief, nor did it address why it had not asked before the record closed on April 28, 2025, to leave the record open for the parties to submit additional written arguments.

Respondent Castro's Post Hearing Brief requests the ALJ to strike District's Post Hearing Brief as untimely and unsolicited. Respondent Castro referenced the Pre Hearing Conference Order which authorized the filing of trial briefs in advance of the hearing, but not after, and asserted that neither counsel nor the ALJ requested written closing or rebuttal argument or other briefing at any time before the record closed. The remainder of respondent Castro's Post Hearing Brief provides additional closing argument to be considered if District's Post Hearing Brief is not stricken.

District's submission of District's Post Hearing Brief is untimely and without good cause. Initially, District failed to request the record be reopened. Rather it claimed it was forced to file its Post Hearing Brief based on respondent Castro's closing argument. Even assuming by the filing of District's Post Hearing Brief that District is requesting to reopen the record for consideration of additional argument or briefing, District failed to establish good cause to do so. District did not address or give reason for its failure to request additional time on the day of hearing to provide additional rebuttal argument before the record closed, or for its failure to request on the day of hearing that the record be held open for additional briefing. Time was available before the record closed for both requests but neither request was made.

As is delineated in the ALJ's Order Excluding Post Hearing Briefs, Respondent Castro's request to have District's Post Hearing Brief stricken is granted. Both District's Post Hearing Brief and Respondent Castro's Post Hearing Brief are excluded from the record.

SUMMARY

On March 4, 2025, District's Board of Education (Board) signed Resolution No. 24-25/48 (Resolution) which ordered for the 2025-2026 school year the particular kinds of service (PKS) to be provided by District would be reduced by 26 full-time equivalent (FTE) positions performed by certificated employees. Included in the Resolution's identified PKS was Single Subject Physical Education (PE). On April 23, 2025, the Board rescinded 25 of the 26 notices. Of the 26 certificated employees who originally received a layoff notice, respondent Castro, who holds a Single Subject PE credential, had the lowest seniority.

District established the Board's decision to reduce or discontinue the 1 FTE Single Subject PE PKS was neither arbitrary nor capricious, constituted a proper exercise of discretion, and related solely to the welfare of District's schools and students. District further established respondent Castro had the lowest seniority, considerations such as bumping and skipping did not apply, and that she was properly identified for layoff.

Respondent Castro argued the Resolution was improperly vague, failing to articulate which services, rather than credentials, were subject to lay off. Respondent Castro further argued that because during the 2024-2025 school year she worked .8 FTE as a secondary PE teacher but .2 FTE as the credentialed teacher present during a dual enrollment class, that if she is laid off, she should only be laid off from her .8 FTE PE position. Finally, respondent Castro intimated that were the Single Subject PE position to be eliminated, District would be in violation of the teacher-student ratio for PE classes set forth in the applicable collective bargaining agreement.

Respondent Castro's arguments were unsubstantiated and without merit. The Resolution provides sufficient specificity as to the PKS to be eliminated, respondent Castro's .2 FTE assignment to the dual enrollment elective was limited to the 2024-2025 school year, and the elimination of the Single Subject PE position would not result in an unauthorized increase in class size.

The RIF is sustained. District may notify respondent Castro her services will not be needed during the 2025-2026 school year due to the reduction of PKS.

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FACTUAL FINDINGS

Jurisdiction

1. Gudiel R. Crosthwaite, Ph.D., Superintendent of District, filed the RIF in his official capacity on March 25, 2025. (Exh. 7.)

2. Respondent Castro is a certificated employee of the District.

3. On March 4, 2025, the Board adopted the Resolution, which proposed a layoff of 19 FTE non-management certificated employees and 7 management certificated employees for the 2025-2026 school year. (Exh. 1.)

4. Before March 15, 2025, District served 26 certificated employees, including respondent Castro, with preliminary notice that their services would not be required for the next school year pursuant to sections 44949 and 44955 (layoff notice).

5. Of those of who received the above-described layoff notice, all 26 certificated employees timely requested a hearing to determine if there is cause for not reemploying them for the 2025-2026 school year. Those certificated employees were thereafter served with the RIF and other related documents (RIF package). (Exh. 7.)

6. On April 23, 2025, District issued Recission of Lay Off Notices to 25 of the 26 certificated employees to whom it had issued layoff notices. (Exh. 18.) District did not issue respondent Castro a Recission of Lay Off Notice.

7. All prehearing jurisdictional requirements were met.

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Board's Resolution

8. The Resolution provides for the reduction or discontinuance of PKS corresponding to a total of 26 FTE positions. Specifically, the Resolution provides for the reduction or discontinuance of the following non-management PKS:

Multiple Subject Credential	15 FTE
Adult Education Teacher Credential	2 FTE
Counselor (Pupil Personnel Services Credential)	1 FTE
Single Subject Physical Education	1 FTE
Total Non-Management Certificate FTE:	19 FTE

The Resolution also called for the reduction or discontinuance of the following management PKS:

Assistant Principal	3 FTE
Coordinator	2 FTE
Assistant Director	1 FTE
School Nurse Services Credential	1 FTE
Total Management Certificated FTE:	7 FTE

9. The decision to reduce or discontinue 26 FTE certificated positions was due to District's budgetary situation, which has forced it to make cuts in several areas, and declining student enrollment.

10. Exhibit A to the Resolution defines competency, for purposes of determining a certificated employee's competency to perform a service in accordance with section 44955 (bumping or skipping). (Exh. 1, p. A5.) The validity of the bumping or skipping criteria or application is not in dispute.

11. Exhibit B to the Resolution sets forth tie-breaking criteria to determine the relative seniority of certificated employees who first rendered paid probationary service on the same date. (Exh. 1, p. A6.) The validity of the tie-breaking process is not in dispute.

12. Gretchen Janson, District Assistant Superintendent for Business Services, provided credible and uncontroverted testimony regarding District's budgetary need for the reduction of the 1 FTE Single Subject PE position. District considered its 2024-2025 budget and projected budgets, its past and projected enrollment, and the City of Lynwood's past and projected birth rate, and used this information to develop its Certificated Teacher Staffing Projections (Exh. 20).

13. District is projecting an operating deficit in its Unrestricted General Fund. District had a beginning balance of \$86.16 million in 2024-2025 with an anticipated ending balance of \$40.24 million in 2026-2027, a decline of approximately \$45.92 million, or 53.30 percent over three years. District's deficit spending is monitored tri-annually by the Los Angeles County Office of Education through a Fiscal Stabilization Plan. (Exh. 35.)

14. Ms. Janson explained that in addition to budgetary considerations, District is required to align staffing with enrollment and so must consider enrollment and birthrate trends when determining the staffing necessary for any given school year. In review of its enrollment trends and the City of Lynwood's birthrates, District

observed a consistent decrease in both enrollment and birthrates over the past 15 years. Notable points of information were District's 2010-2011 enrollment of 15,667 students (Exh. 28, p. A613), compared to its 2023-2024 enrollment of 11,286 students (Exh. 29, p. A638), its 2024-2025 enrollment of 9,803 students (Exh. 20, p. A523), and its projected 2025-2026 enrollment of 9,125 students (*Id.*). As well, the City of Lynwood's birth rate has decreased from 1,573 births in 2008 to 781 births in 2022. (Exh. 26.)

Seniority List

15. District maintains a seniority list that contains employees' seniority dates (first date of paid service), credential information, and current assignments. (Exh. 12.) Carlos Zaragoza, District's Assistant Superintendent of Human Resources, credibly testified to the accuracy of the seniority list and how it is compiled.

16. Mr. Zaragoza explained in his testimony how District staff analyzed the seniority list for possible bumps but found respondent Castro was not certificated and competent (as defined by the Resolution) to do so.

17. At the time of the Resolution, District did not realize respondent Castro had a supplemental psychology authorization based on the psychology units she obtained when completing her bachelor's degree in psychology. However, at the time of the hearing, District had considered respondent Castro's supplemental psychology authorization but determined it did not affect her layoff notice. Rather, District can assign social science teachers to teach any psychology class, were there to be any for the 2025-2026 school year, which was yet unknown, and respondent Castro had lower seniority than District's social science teachers.

18. Mr. Zaragoza further explained the RIF was based on the elimination of PKS and it did not provide for any partially eliminated positions. Based on the

projected enrollment and birth rate information reviewed by the Board and its continued deficit spending and Financial Stabilization Plan, at the time of hearing District continued to need to eliminate one FTE Single Subject PE. Based on respondent Castro's August 14, 2023, start date she had the lowest seniority and did not share a start date with another certificated employee.

19. The Board properly considered all known attrition, resignations, retirements and requests for transfer in determining the actual number of necessary layoff notices to be delivered to its employees prior to March 15, 2015. (*San Jose Teachers Association v. Allen* (1983) 144 Cal.App.3d 627, 636).

20. District established that no junior certificated employee is scheduled to be retained to perform services which a more senior employee is certificated and competent to render.

Respondent Castro's Contentions

21. Respondent Castro does not contend she has seniority over a junior certificated employee being retained, nor does she contend skipping rights. Rather, respondent Castro raised three challenges to the RIF related to notice, other possible assignments, and class size. These three challenges were not directly articulated, but can be deduced by respondent Castro's identification of issues she raised at the beginning of the hearing, her questions of witnesses, and her closing argument. Nevertheless, respondent Castro's contentions are not supported by the evidence or law and do not provide cause, either in whole or in part, to prevent District from providing her notice that her services will not be required for the 2025-2026 school year.

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ADEQUATE NOTICE

22. Respondent Castro first contends the Resolution is improperly vague in that it identifies credentialed positions to be eliminated which respondent Castro claims is distinguishable from identifying services to be eliminated. However, the Resolution was not vague; to the contrary it provided sufficient notice with specificity as required by law. When considering the notice required under section 44955, the layoff notice need not "specify the precise number of teachers to be terminated or the specific positions to be eliminated; those details emerge as the administrative hearing process progresses." (*Santa Clara Federation of Teachers v. Governing Board* (1981) 116 Cal.App.3d 831, 841 (hereafter *Santa Clara*)). "The specific positions to be eliminated need not be identified." (*San Jose Teachers Assn. v. Allen* (1983) 144 Cal.App.3d 627, 632 (hereafter *San Jose*), citing *Santa Clara, supra*, 144 Cal.App.3d. at 841.)

23. The Resolution met the notice requirements of section 44955 and of *Santa Clara, supra*, 116 Cal.App.3d 831, and *San Jose, supra*, 144 Cal.App.3d 627. Of the non-management positions, the Resolution specified the elimination of the following PKS: Multiple Subject Credential (15 FTE), Adult Education Teacher Credential (2 FTE), Counselor (Pupil Personnel Services Credential) (1 FTE), and Single Subject PE (1 FTE), for a total of 19 Non-Management Certificated FTE. Of these PKS, respondent Castro held an applicable credential or the one FTE Single Subject PE. (Exh. 4, pp. A46, A50-A52.) Further specificity, such as identifying in the Resolution the specific service or assignment to be eliminated, or identifying the elimination or availability of elective courses during the 2025-2026 school year, need not be included in the layoff notice.

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ASSIGNMENTS TO ELECTIVE COURSES

24. Akin to her first contention, respondent Castro's second contention is the Resolution does not identify the elimination of psychology classes, generally, or the elimination of the .2 FTE dual enrollment elective course she taught during the 2024-2025 school year. Based on the absence of these assignments in the Resolution, respondent Castro asserts District should, for the 2025-2026 school year, offer respondent Castro a psychology class and is prohibited from laying respondent Castro off from the .2 FTE dual enrollment assignment.

Psychology Assignment

25. Respondent Castro proffered the idea that based on her supplemental psychology authorization, perhaps there may be a psychology course she could teach during the 2025-2026 school year. Although not specifically articulated, respondent Castro seemed to suggest the Resolution failed to identify whether any psychology courses would be eliminated and so, due to this lack of specificity, respondent Castro should be provided the opportunity to teach a psychology course during the 2025-2026 school year. However, as explained by Mr. Zaragoza at hearing, any psychology course taught by District is an elective and dependent on student interest. District did not know at the time that notice was required, nor did it know at hearing, if any psychology course would be taught during the 2025-2026 school year. Further, District's psychology classes are most often taught by District's social science teachers, all of whom had greater seniority than respondent Castro. Therefore, to the extent any psychology course became available to teach during the 2025-2026 school year, respondent Castro would not have seniority to fill that position.

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Dual Enrollment Elective Assignment

26. Respondent Castro also claims that if District's proposed elimination of the 1 FTE Single Subject PS is upheld, District can only eliminate .8 FTE of her Single Subject PE position because during the 2025-2026 school year she was teaching .8 FTE PE and .2 FTE dual enrollment elective, an elective that was not identified as a PKS to be eliminated. In support of her claim, respondent Castro presented Exhibit O, Resolution No. 24-25/06 Consent to Assignment (Consent to Assignment Resolution).

27. Pursuant to the Consent to Assignment Resolution, District assigned respondent Castro for the 2024-2025 school year to "Electives-NEPCC" (dual enrollment elective) (Exh. O, p. B72); the amount of FTE included in this assignment was unstated. The Consent to Assignment Resolution is dated September 12, 2024, but is not signed. (Exh. O, p. B78.) Nonetheless, Mr. Zaragoza acknowledged its validity and that respondent Castro taught, and was assigned to continue to teach for the entirety of the 2024-2025 school year, .2 FTE dual enrollment elective. As respondent Castro testified at hearing, her responsibilities for the .2 FTE dual enrollment elective included her being the credentialed teacher present in the classroom during the community college dual enrollment course, taking roll, and contacting parents or guardians if a student was at risk of not passing the course.

28. The portion of the Consent to Assignment Resolution applicable to respondent Castro's dual enrollment elective was adopted by the Board pursuant to California Code of Regulations, title 5 (Regulations), section 80005, subdivision (b). This regulation authorizes District to assign the holder of a teaching credential, with the credential holder's consent, to teach a subject matter that does not "fall within or are not directly related to the broad subject areas listed in [subdivision] (a)", including physical education, if District determines the teacher has the requisite knowledge and

skills to teach the course, such as life skills, conflict management, and study skills.
(Regulations, § 80005, subd. (b).)

29. The Board found the following cause to assign respondent Castro, as well as other teachers, to teach subjects outside of their credentialed subject area:

WHEREAS, the certificated employees listed below
[including respondent Castro] have signed a consent form
pursuant to [Regulations, section 80005, subdivision (b)]. In
most cases, there is an obvious match between the class
curriculum and the authorization(s) listed on the selected
credential. However, there are some elective classes for
which there is no match. If no credential exists that
authorizes the curriculum and elective credit is being given,
the employing agency should select the credentialed
teacher whose knowledge and training best fulfills the
needs of the students. In such assignments, the teacher's
consent is required. . . .

(Exh. O, p. B72.)

30. Based on the plain reading of the Consent to Assignment Resolution, the .2 FTE assignment was time limited for the 2024-2025 school year, during which time District offered the NEPCC dual enrollment elective class. No evidence was presented that the Board has adopted a Consent to Assignment for the 2025-2026 school year authorizing respondent Castro to teach outside of her Single Subject PE credential.

31. The Consent to Assignment Resolution neither created a PKS of electives, generally, nor did it create a PKS for the NEPCC .2 dual enrollment elective assigned to

respondent Castro during the 2024-2025 school year. As Mr. Zaragoza explained in his testimony, all of District's offered electives vary year to year; at the time of the Resolution and at the time of hearing, District did not know what electives would be offered for the 2025-2026 school year. Further, to the extent the NEPCC .2 FTE dual enrollment elective may be offered during the 2025-2026 school year, District would assign a certificated teacher with greater seniority than respondent Castro to the course.

UNAUTHORIZED INCREASE IN CLASS SIZE

32. Third, respondent Castro intimated she also challenges the elimination of the 1 FTE Single Subject PE because it would enable District to reduce its PE offering below the level required by District's and Lynwood Teacher Association CTA/NEA's Collective Bargaining Agreement (CBA) (effective through June 30, 2025). During respondent Castro's presentation of her case, she raised the issue of PE class size limits. Although she did not directly assert that District was attempting to increase its secondary PE teacher-to-student ratio by eliminating 1 FTE Single Subject PE, during questioning of Mr. Zaragoza respondent Castro repeatedly referred to any instances of District exceeding the PE teacher-to-student ratio as occurrences of District violating the CBA. For these reasons, whether District's RIF would result in an unauthorized increase in class size is considered here.

33. Courts have considered whether a school district may increase class size through a PKS reduction in force. The court in *Burgess v. Board of Education* (1974) 41 Cal.App.3d 571, 579 (hereafter *Burgess*), held that an increase in class size and student-teacher ratio is not a reduction in PKS. However, the court in *Degener v. Governing Board* (1977) 67 Cal.App.3d 689, 693 (hereafter *Degener*) found *Burgess* distinguishable because that case involved a reduction of overall teaching services by

increasing the size of all classes. The *Degener* court upheld the district's reduction of PE program services, noting "'(a)s long as a district does not reduce its offerings in a code-mandated course below the level required by law, that reduction should be considered a reduction of a particular kind of service. . . .'" (*Id.* at p. 695.)

34. Respondent Castro failed to establish District, through its resolution to eliminate 1 FTE Single Subject PE, would be reducing its secondary PE offering below that required by law or by the CBA. The CBA provides the PE teacher to student ratio is 1 teacher to 55 students (PE 1:55 ratio). (Exh. 13, p. A382.) However, the CBA further provides that individual classes or caseloads may, out of necessity, occasionally exceed the student to teacher ratios. When this occurs, the principal of the affected school must first discuss the problem with the affected teachers and explore alternative approaches to resolve the problem and meet the required ratios. If after 20 days the problem remains unresolved and classes or caseloads remain above, for example, the PE 1:55 ratio, District must compensate the teacher at \$100 per additional student per 20 days until the matter is resolved. (*Ibid.*)

35. During his testimony, Mr. Zaragoza acknowledged that generally, during the 2024-2025 school year and previous school years, some secondary PE classes exceeded the PE 1:55 ratio. Mr. Zaragoza further explained that sometimes the PE 1:55 ratio was exceeded during certain classes due to scheduling challenges or an influx of transfer students to a school which might leave some PE classes with a ratio under the PE 1:55 ratio and other PE classes exceeding the PE 1:55 ratio. However, in all circumstances when the PE 1:55 ratio was exceeded, the teacher was compensated as required by the CBA.

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LEGAL CONCLUSIONS

1. All notice and jurisdictional requirements set forth in sections 44949 and 44955 were met. (Factual Findings 1-7.)

2. In administrative hearings involving personnel matters, the burden of proof is on the agency prosecuting the charges. (See, e.g., *Parker v. City of Fountain Valley* (1981) 127 Cal.App.3d 99, 113; *Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035.) In this case involving the employment rights of respondent Castro, District bears the burden of proof. As no other law or statute requires otherwise, the standard of proof in this case is the preponderance of the evidence. (Evid. Code, § 115.)

3. The services identified in the Resolution are PKS that could be reduced or discontinued under section 44955. The Board's decision to reduce or discontinue the identified services was neither arbitrary nor capricious and was a proper exercise of its discretion. Cause for District's reduction or discontinuation of services relates solely to the welfare of District's schools and pupils within the meaning of section 44949. (Factual Findings 8-20.)

4. A school district may reduce services within the meaning of section 44955, subdivision (b), "either by determining that a certain type of service to students shall not, thereafter, be performed at all by anyone, or it may 'reduce services' by determining that proffered services shall be reduced in extent because fewer employees are made available to deal with the pupils involved." (*Rutherford v. Board of Trustees* (1976) 64 Cal.App.3d 167, 178-179.)

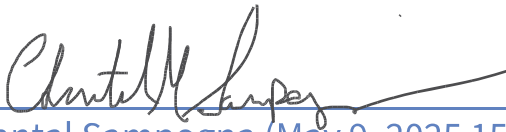
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5. Cause exists within the meaning of section 44955 to reduce the number of certificated employees of District due to the reduction or discontinuation of PKS. District identified certificated employee respondent Castro as providing the PKS that the Board directed to be reduced or discontinued. (Factual Findings 1-35; Legal Conclusions 1-4.)

ORDER

The Statement of Reduction in Force is sustained with respect to respondent Castro. Notice may be given to respondent Castro that her services will not be required for the 2025-2026 school year due to the reduction or discontinuance of a particular kind of service.

DATE:


Chantal Sampogna (May 9, 2025 15:57 PDT)

CHANTAL M. SAMPOGNA

Administrative Law Judge

Office of Administrative Hearings